

Court intends to dismiss the case without prejudice pursuant to Gov. Code § § 68608(b).

BELTRAN VS. M.K. & A., LLC

Case Number: 23CV-0203159

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff's counsel Travis E. Stroud for failing to appear at the hearing September 16, 2024. Counsel had notice of the hearing as evidenced in the Notice of Entry of Order filed on May 8, 2024 and the Court's Tentative Ruling on August 26, 2024. Additionally, Plaintiff filed a motion that was noticed for September 16, 2024. Counsel did not file a written response to the Order to Show Cause. Instead, a Substitution of Attorney was filed on October 30, 2024 and Plaintiff now has new counsel. With no sufficient excuse for the non-appearance, sanctions are imposed against Travis E. Stroud in the amount of \$250. The clerk is directed to prepare a separate Order of Sanctions. **No appearance is necessary at 8:30 a.m., however, the matter will be called at 9:00 a.m. where the Court will expect an appearance by new counsel.**

COLBURN VS. CITY OF REDDING, ET AL.

Case Number: 23CV-0202762

Tentative Ruling on Motion for Summary Judgment: This is a personal injury action, brought by Plaintiff Yvonne Colburn. Plaintiff alleges she tripped and fell on a city sidewalk on July 12, 2022, and sustained injuries. Her Amended Complaint alleges one cause of action: premises liability, for a dangerous condition on public property. Defendant is the City of Redding ("City"). The City has also filed a Cross-Complaint for indemnity and equitable contribution against Linda Olson, as Trustee for the Olson Family Trust. The City moves for summary judgment. Plaintiff opposes the motion.

Request for Judicial Notice: The City's request for judicial notice of the Amended Complaint is granted.

Objections to Evidence: Plaintiff's objections to evidence are overruled. City's objections to evidence numbers 1-7, and 9 are overruled. City's objections to evidence numbers 8 and 10 are sustained.

Standard on Summary Judgment: The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences "in the light most favorable to the opposing party." CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 843. "Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact." *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304.

Premises Liability for a Dangerous Condition of Public Property: "Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was